

		If Defense counsel again fails to meet and confer as ordered, the Court will consider imposition of further sanctions, including but not limited to monetary sanctions. Plaintiff to give notice.
7	Rise Solution, Inc. vs. Vyapay, Inc. 2023-01345788	Motion to Compel Production Plaintiff Rise Solution, Inc.’s unopposed Motion to Compel Defendant Vyapay, Inc. to Provide Further Responses to Requests for Production of Documents (Set One) and Further Responses to Special Interrogatories (Set One); and for Monetary Sanctions is GRANTED. Plaintiff’s request for sanctions is GRANTED in the reduced amount of \$1,831.50. On June 28, 2024, Plaintiff propounded the following discovery requests to Defendant: (1) Requests for Production of Documents to Vyapay (Set One); (2) Request for Special Interrogatories to Vyapay (Set One). (Marcus Decl. ¶¶ 4-6, Exs. A, B.) Plaintiff thereafter granted Defendant an extension to serve responses to August 9, 2024. On August 9, 2024, Defendant electronically served unverified responses consisting of objections only. (Id., ¶¶ 7-10, Exs. C, D.) On August 15, 2024, Plaintiff sent a meet and confer letter requesting further responses by August 25, 2024. (Id. ¶¶ 11-12, Ex. E.) Defendant failed to respond or to serve further responses. (Id., ¶ 13.) As an initial matter, Plaintiff complains Defendant’s objection-only responses were unverified. Although the <i>Code of Civil Procedure</i> refers to verified responses (§§ 2030.300(c), 2031.310(c)), objection-only responses need not be verified (§§ 2030.250, 2031.250). <u><i>Special Interrogatories</i></u> A party may move to compel further responses to interrogatories where the party deems the responses are evasive or incomplete, an exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate, and/or an objection in the response is without merit or too general. <i>Code of Civil Procedure</i> § 2030.300(a); <i>Best Products, Inc. v. Superior Court</i>

	(2004) 119 Cal.App.4th 1181, 1189-1190 [motion to compel proper to challenge “boilerplate” responses].) The motion must be accompanied by a separate statement. <i>California Rules of Court</i>, Rule 3.1345(a). If a timely motion has been filed, the responding party bears the initial burden of justifying any objection or failure fully to answer the interrogatories. <i>Coy v. Superior Court</i> (1962) 58 Cal.2d 210, 220-221; <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255. The court finds the motion was timely filed on September 16, 2024. <i>Code Civ. Proc.</i>, §§ 2030.300(c), 1013, 1010.6(a)(3)(B), 2016.050. The court also finds Defendant’s responses are not in conformity with the Code in that they all contain the same boilerplate objections, without any substantive responses. Since Defendant failed to oppose the motion, it has not met its initial burden of justifying its objections and failure to fully respond to the interrogatories. Accordingly, Defendant’s objections are OVERRULED. Therefore, the motion as to the Special Interrogatories is GRANTED. <u><i>Request for Production of Documents</i></u> A party may move to compel further responses to a demand for inspection, copying, testing, or sampling on the grounds that a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, and/or an objection in the response is without merit or too general. <i>Code Civ. Proc.</i> § 2031.310(a). A motion to compel further responses to a request for production and inspection of documents must (1) “set forth specific facts showing good cause justifying the discovery sought by the demand” and (2) “be accompanied by a meet and confer declaration” showing a reasonable and good faith attempt to resolve the issues informally. <i>Code Civ. Proc.</i> §§ 2031.310(b); 2016.040. To establish good cause, the moving party must show both relevance to the subject matter and specific facts justifying the discovery, e.g. why such information is necessary for trial preparation or to prevent surprise at trial. <i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) If good cause is shown, the burden shifts to the opposing party to justify any objections made to the disclosure. <i>Ibid</i>.
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Here, Plaintiff seeks 9 categories of documents which seek, respectively, the reports made by the Defendant that reflect the accumulated funds for Plaintiff's reserve account, and if there are any reports in Defendant's custody showing the consumers payments that were declined by the banks to justify the withholding of the reserve funds. Plaintiff's Motion and Separate Statement have established good cause for the discovery sought by setting forth specific facts showing the discovery is necessary for Plaintiff to evaluate Defendant's denials in its answer to the complaint, prepare for trial, and appropriately prosecute this case.

Defendant's responses are not in conformity with the Code in that they all contain the same boilerplate objections, without any substantive responses. Since Defendant failed to oppose the motion, it has not met its initial burden of justifying its objections and failure to provide substantive responses. Accordingly, Defendant's objections are OVERRULED.

Therefore, the motion is as to the Request for Production of Documents is GRANTED.

Sanctions

Plaintiff seeks sanctions against Defendant and/or its counsel in the amount of \$2,079.00. This amount consists of 3.2 hours preparing the motion and meet and confer efforts, 1 hour anticipated to review the opposition, prepare a reply, and preparing for and attending the hearing (totaling 4.2 hours) @ \$495 per hour. (Marcus Decl., ¶¶ 14-15.) Given the facts outlined in detail above, Plaintiff is entitled to the sanctions requested, less 0.5 hour/\$247.50 to review an opposition and prepare a reply.

Defendant Vyapay, Inc. is ORDERED to served further verified responses, without objections, to Plaintiff's Requests for Production of Documents (Set One) and Special Interrogatories (Set One) within 20 days.

Defendant is ORDERED to pay monetary sanctions to Plaintiff in the amount of \$1,831.50.

Plaintiff to give notice to both Defendants (Vyapau, Inc. and Wain Swapp) AND Sutton & Murphy.

8	Gomez vs. Harper's Pharmacy, Inc. 2023-01354034	Motion to Compel Production Off Calendar Request for Dismissal with Prejudice-Entire Action filed on 04/08/2025
9	Brown vs. General Motors, LLC 2024-01413627	Motion to Compel Production Plaintiff Jake Brown's Motion to Compel Further Responses by Defendant General Motors, LLC's to Request for Production of Documents, Set One, is CONTINUED to June 16, 2025 at 01:45 PM in Department C15. Plaintiff moves pursuant to <i>Code of Civil Procedure</i> § 2031.310 for an order compelling Defendant to provide further responses to Request for Production of Documents Nos. 1-9, 13-21, 24, 25, 27, 33-38, 41-51, and 53-93. Before filing a motion to compel further responses to an inspection demand, the moving party must engage in a good faith effort to informally resolve the dispute and file a declaration documenting such efforts with the motion. <i>Code Civ. Proc.</i> §§ 2016.040, & 2031.310(b)(2). Here, the Declaration of Erik Whitman fails to demonstrate any meaningful meet and confer prior to filing the motion. Counsel for Plaintiff sent one meet and confer letter and failed to respond to Defendant's letter or address its concerns regarding the discovery. Plaintiff's counsel did not even bother to call opposing counsel. The parties/counsel have not engaged in sufficient attempts to meet and confer. <i>Code Civ. Proc.</i> , § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].